

Andhra Pradesh Districts (Formation) Act, 1974

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State of Andhra Pradesh - Act

Andhra Pradesh Districts (Formation) Act, 1974

ANDHRA PRADESH

India

Andhra Pradesh Districts (Formation) Act, 1974

Act 7 of 1974

Published on 15 February 1974

Commenced on 15 February 1974

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Andhra Pradesh Districts (Formation) Act, 1974

(Act

No. 7 of 1974

as amended in year 1985)

Last Updated 30th January, 2020

(Received the assent of the Governor on the 15th February, 1974. For Statement of Objects and Reasons see Andhra Pradesh Gazette, Extraordinary, dated the 24th January, 1974, Part IV-A).

An Act to provide for the formation of districts in the State of Andhra Pradesh and for alteration of areas or boundaries of the districts in the interests of better administration and development of the areas comprised there in and for matters connected therewith.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Twenty-fifth Year of the Republic of India as

follows: -

1.

Short title, extent and commencement.

(1)

This Act may be called the Andhra Pradesh Districts (Formation) Act, 1974.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

It shall come into force on such date as the State Government may, by notification in the Andhra Pradesh Gazette, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires, -

(a)

["Commissioner of Land Revenue" means the Commissioner of Land Revenue for Andhra Pradesh;]

[Substituted for the words 'Board of Revenue' by A.P. Act 14 of 1985.]

(b)

"Government" means the State Government;

(c)

"notification" means a notification published in the Andhra Pradesh Gazette and the expression 'notify' or 'notified' shall be construed accordingly;

(d)

"prescribed" means prescribed by rules made under this Act ;

(e)

"revenue division [Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 14 of 1985 (w.e.f. 11-1-1984)]

and village" means respectively any area which is notified as a revenue division, [Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 14 of 1985 (w.e.f. 11-1-1984)]

or village under this Act,

3.

Division of State into districts, formation of new districts and alteration of areas, boundaries or names of existing districts.

(1)

The Government may, by notification, from time to time, for the purposes of revenue administration, divide the State into such districts with such limits as may be specified therein; and each district shall consist of such revenue divisions and each revenue division shall consist of such [Mandal]

[Substituted by Act 14 of 1985.]

and each Mandal shall consist of such villages as the Government may, by notification from time to time, specify in this behalf.

(2)

The Government may, in the interests of better administration and development of the areas, by notification, from time to time, and with effect on and from such date as may be specified therein-

(a)

from a new district, revenue division [or Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 1985 (w.e.f. 11-1-1984).]

by separation of area from any district, revenue division, [or Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 1985 (w.e.f. 11-1-1984).]

or by uniting two or more districts, revenue divisions, [or Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 1985 (w.e.f. 11-1-1984).]

or parts thereof or by uniting any area to a district, revenue division, [or Mandal]

[Substituted by Act 14 of 1985.]

[or Mandal]

[Substituted by Act 14 of 1985.]

or part there

(b)

(c)

(d)

(e)

increase the area of any district, revenue division, [or Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 1985 (w.e.f. 11-1-1984).]

; diminish the area of any district, revenue division [or Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 1985 (w.e.f. 11-1-1984).]

; alter the boundaries of any district, revenue division, [or Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 1985 (w.e.f. 11-1-1984).]

alter the name of any district, revenue division [or Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 1985 (w.e.f. 11-1-1984).]

; [Proviso Repealed by Act No 14 of 1985].

(3)

The areas, boundaries and names, of the districts, revenue divisions, taluks, firks and villages in the State existing at the commencement of this Act shall be deemed to have been notified under sub-section (1) and shall continue until they are altered by the Government or the Board of Revenue, as the case may be.

(4)

The Board of Revenue may, in the interests of better administration and development of the areas and subject to such rules as may be prescribed, by notification, group or amalgamate any two or more revenue villages or portions thereof so as to form a single new revenue village or divide any revenue village into two or more revenue villages, or increase or diminish the area of any revenue village, or alter the boundaries or name of any revenue village.

(5)

Before issuing any notification under this section, the Government or the Board of Revenue, as the case may be, shall publish in such manner as may be prescribed, the proposals inviting objections or suggestions thereon from the persons residing within the district, revenue division, [Mandal]

[Substituted for the words 'Taluk, Firka' by A.P. Act 1985 (w.e.f. 11-1-1984).]

or village who are likely to be affected thereby within such period as may be specified therein, and shall take into consideration the objections or suggestions, if any, received.

(6)

Any notification under this section may contain such supplemental incidental and consequential provisions (including provisions as to adaptation and construction of laws) as the Government or the [Commissioner of Land Revenue]

[Substituted by Act 14 of 1985.]

as the case may be, may deem necessary.

N.B.: Board of Revenue was abolished and in its place three posts of Commissioners are created. Commission of Land Revenue, Commissioner of Survey and settlement and Commissioner of Land reforms.

4.

Power to make rules and the Laying of notifications before the State Legislature.

(1)

The Government may, by notification, make rules for carrying out all or any of the purposes of this Act.

(2)

Every notification made under this Section shall, immediately after it is made, be laid before each House of the State Legislature if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the notification or in the annulment of the notification, the notification shall, from the date on which the modification or annulment is notified, have effect only in such modified form or shall stand annulled, as the case may be; so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that

notification.

5.

Repeal Act I of 1865, Act VIII of 1317-F.

- The Andhra Pradesh (Andhra Area) District Limits Act, 1865 and Section 5 of the Andhra Pradesh (Telangana Area) Land Revenue Act, 1317 F. are hereby repealed.

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